

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 30-002

**Amendments to Title 2, Chapter 4, Article A of the Chickasaw Nation Code
(General Provisions)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, there is a need to provide broader legal protections and defenses for elected officials and employees of the Chickasaw Nation who are acting within the scope of their official duties and/or employment.

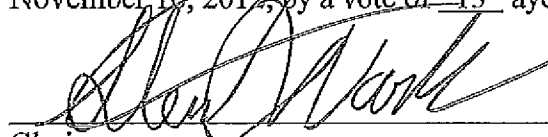
NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby adopts the following amendments to Title 2, Chapter 4, Article A, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

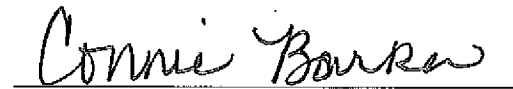
“SECTION 2-401.8

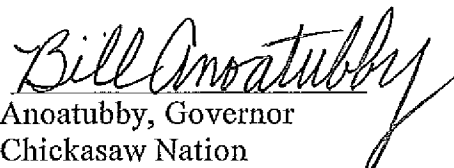
**LEGAL PROTECTION FOR OFFICERS AND EMPLOYEES
OF THE NATION.**

The Chickasaw Tribal Legislature extends full and complete tribal protection, legal defense, and indemnification to all officials of the judicial, executive and legislative departments, employees and/or agents of the Chickasaw Nation during any and all times that those officials, employees and/or agents are engaged in activities that are in full keeping with their assigned, mandated or delegated tasks as officials, employees and/or agents of the Chickasaw Nation. Such protections shall include providing legal protections and legal defenses for those persons who may be the subject of a lawsuit ~~become involved in litigation~~ or in other actions brought against them as individuals or as officials, employees and/or agents of the Chickasaw Nation, and costs for such actions are authorized to be paid by the respective departments' annual budgets. ~~by the state or any of its agencies, departments, officers or employees.~~ This in no way impacts the ability of the Chickasaw Nation to claim sovereign immunity in any court while providing any such defense. Any such defense shall be managed through the Executive Department or a named designee of same.”

Executed in regular session of the Chickasaw Tribal Legislature, meeting in Ada, Oklahoma, on November 16, 2012, by a vote of 13 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur/Veto: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: NOV 16 2012

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 30-002
Amendments to Title 2, Chapter 4, Article A of the Chickasaw Nation Code
(General Provisions)

Explanation: This resolution amends Title 2, Chapter 4, Article A, Section 2-401.8 of the Chickasaw Nation Code to provide broader legal protections and defenses for elected officials and employees of the judicial, executive and legislative branches of the Chickasaw Nation who are acting within the scope of their official duties and/or employment.

Presented by: Court Development Ad Hoc Committee